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MOTION

FOR SANCTIONS

The Court

tenders the following tentative decision in the matter Azar Barani v. Zara Barani, Los Angeles County Superior Court case number 23STCV30210, set for hearing on August 21, 2026. Azar Barani (Plaintiff) moves for summary adjudication in its favor as to the fifth cause of action for declarator relief alleged in Zara Barani's (Defendant) cross complaint (CC). Defendant opposes the motion. The Court denies summary adjudication.

A.

Procedural

History

Plaintiff

filed the present suit on December 11, 2023. Defendant filed the relevant CC on February 7, 2024. She alleged the following causes of action: (1) dissolution of corporation; (2) removal of director; (3) production and inspection of corporate records; (4) accounting; (5) declaratory relief; (6) unjust enrichment; (7) breach of oral agreement; and (8) breach of lease agreement. Plaintiff filed the instant motion for summary adjudication regarding the fifth cause of action for declaratory relief on May 11, 2026. Defendant filed her opposition on August 3. Plaintiff filed a reply on August 12.

B.

Evidentiary

Objections

The Court

need only rule on those evidentiary objections which reference the evidence upon which the Court relies in reaching its decision. The rest are preserved.

Objections

to Plaintiff's Declaration

Defendant

objects to multiple portions of Plaintiff's Declaration. First, objections 6 and 7 challenge paragraphs 8 and 9 as hearsay and in violation of the secondary evidence rule to the extent that it discusses AHHC's operating agreement. The objection also invokes Rule of Court 5.111(b)(2), which is not applicable to civil disputes. "'Hearsay evidence' is evidence of a statement that was made other than by a witness while testifying at the hearing and that is offered to prove the truth of the matter stated." (Evid. Code, § 1200.) The content of a writing may be proved by secondary evidence unless the Court determines that a genuine dispute exists regarding the material terms of the writing or admission of the secondary evidence would be unfair. (Id., § 1521, subd. (a).) However, the operating agreement is offered as a legally operative document. In a contract action, words using by the contracting parties in forming the agreement are non-hearsay when offered to show essential elements of the contract, as the words are not offered for the truth of what they assert but are themselves legally operative. (See *State of Oregon v. Superior Court (Lillard)* (1994) 24 Cal.App.4th 1550, 1555.) Thus, the operating agreement is not itself hearsay and Plaintiff's characterization of the agreement is not hearsay, either. The secondary evidence rule is not applicable because Plaintiff provides the primary evidence, the operating agreement. Accordingly, objections 6 and 7 are overruled.

Second,

objections 9 and 16 are overruled because they are ambiguous. Objection 9 claims to challenge a statement regarding meeting minutes as hearsay but references a line discussing Exhibit 5, related to tax returns. Objection 16 is based on the vagueness of testimony, citing Evidence Code section 765. However, that section relates to the method of interrogation of a witness at trial.

Objections

to Defendant's Declaration

Plaintiff

objects to multiple portions of Defendant's declaration. First, objection 9 challenges paragraph 7 of the declaration, which states that "I executed a Membership Transfer on AHHC letterhead dated December 31, 2015 (the 'Membership Transfer'). Based upon my discussions with Plaintiff, Plaintiff transferred her membership interest in AHHC to me pursuant to the Membership Transfer because Plaintiff wanted to establish two other business in her own name, a home health care company and a hospice company (without my having an ownership interest in these business, in contrast to my ownership interest in AHHC) and wanted me to assist in starting and operating those business and to act as the Director of Nursing for those business, just as I did with AHHC." (Zara Decl. ¶ 7.) Plaintiff objects on the grounds that the statement is hearsay, lacks foundation and personal knowledge, constitutes improper opinion as to Plaintiff's state of mind, and offers an improper legal conclusion. The statement falls under the hearsay exception for party admissions. (See Evid. Code, § 1220.) Defendant offers proper foundation and personal knowledge. (Zara Decl. ¶ 1.) Defendant does not purport to offer Plaintiff's state of mind, but rather a summary of their discussions. And the testimony is rationally based on Defendant's perception. (Evid. Code, § 800.) Thus, the objection is overruled.

C.

Legal

Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a claim or defense and if not to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure Section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, a moving defendant "has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd.

(p)(2).) A moving cross-complainant, meanwhile, “has met that party’s burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Id., § 437c, subd. (p)(1).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389 (Dore).) Once the defendant has met that burden, the burden shifts to the opposing plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

D. Discussion

Plaintiff moves for summary adjudication as to Defendant’s fifth cause of action for declaratory relief. “Any person interested under a written instrument . . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action . . . for a . . . determination of any question of construction or validity arising under the instrument.” (Code Civ. Proc., § 1060.) “Declaratory relief generally operates prospectively to declare future rights, rather than to redress past wrongs.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.) To qualify for such relief, a party must demonstrate that the action is: (1) a proper subject of declaratory relief; and (2) an actual controversy. (Ibid.)

Defendant alleges that Access Home Health Care, LLC (AHHC) was organized on October 22, 2008, with Plaintiff taking an initial 95% interest in the company and Defendant just 5%. (CC ¶¶ 35–37.) Defendant further alleges that Plaintiff conveyed her interest to Defendant on December 31, 2015. (Id. 37.) Defendant alleges the existence of the following controversy for which she seeks a declaration of rights and duties with respect to each party: whether Defendant holds a 100% interest in AHHC, or if Plaintiff has retained a 50% interest. (Id. ¶ 41.)

Plaintiff argues that Defendant has based her entire declaratory relief claim on a single exhibit which she is unable to authenticate. Alternatively, Plaintiff contends that the rest of the record refutes Defendant’s claim of

100% ownership and that summary adjudication is appropriate because Defendant does not own 100% of the company as a matter of law. First, the Court will address these arguments to determine whether Plaintiff has met her burden of demonstrating that one or more elements of Defendant's claim cannot be established. If she has, the Court will turn to whether Defendant has met her burden by raising any triable issues of material fact.

Plaintiff has met her initial burden

of showing that Defendant cannot establish necessary elements of her cause of action for declaratory relief.

Plaintiff argues that Defendant cannot prevail on her cause of action for declaratory relief because she has not demonstrated the existence of an actual controversy. She presents evidence that she founded AHHC with Defendant in 2008, with the company governed by an operating agreement executed April 30, 2009. (Plaintiff's Separate Statement (PSS) ¶ 1; Azar Decl. ¶ 8, Ex. 1.) That agreement granted Plaintiff a 95% ownership interest in the company and Defendant a 5% interest, reflected in membership certificates issued to the parties. (PSS ¶¶ 2–3; Azar Decl. ¶ 9, Exs. 1, 3.) From 2012 through 2023, distributions from AHHC were made equally to Plaintiff and Defendant as reflected in their respective tax returns, pursuant to a temporary profit-sharing agreement approved by Plaintiff. (PSS ¶ 6; Azar Decl. ¶¶ 11–12, Exs. 4, 9.) A document offered by Defendant dated December 31, 2015, purports to show a transfer of Plaintiff's ownership interest to Defendant but contains no explicit consideration terms. (PSS ¶ 7, Azar Decl. ¶ 18.) Plaintiff further challenges the document's authenticity, noting that Defendant's deposition testimony suggests that she had never previously seen the purported document. Post-2015 distributions remained the same, and no vendor or regulator was notified of an ownership change. (PSS ¶ 11, Azar Decl., Ex. 9.) And in 2023, Defendant emailed Plaintiff offering to buy her out of AHHC, indicating that no prior transfer had occurred in 2015. (PSS ¶ 12; Azar Decl. ¶ 30, Ex. 14.)

The evidence presented by Plaintiff is relevant to support the contention that she never transferred her ownership interest in AHHC to Defendant. It shows that initially Plaintiff owned 95% of the company. She later offered to share profits with Defendant. And in 2023, Defendant offered to buy Plaintiff's ownership interest. Plaintiff's evidence tends to undermine Defendant's reliance on the December 31, 2015 document, by reference to subsequent business operations and communications between the parties. Thus, Plaintiff has met her initial burden of demonstrating that no actual controversy exists for which Defendant

may pursue an action for declaratory relief. Accordingly, the burden shifts to Defendant to demonstrate some triable issue of material fact.

Defendant has met her burden of demonstrating the existence of a triable issue of material fact with respect to her declaratory relief claim.

Defendant argues that sufficient evidence exists to support the authenticity of the purported membership transfer document from 2015. A writing must be authenticated before it is received into evidence. (Evid. Code, § 1401, subd. (a).) “Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law.” (Id., § 1400.) If “there is sufficient evidence to sustain a finding that the writing is what the proponent claims, the authenticity of the document becomes a question of fact for the trier of fact.” (McAllister v. George (1977) 73 Cal.App.3d 258, 262.)

Here, Defendant offers evidence that Plaintiff prepared and both parties executed the membership transfer. (DSS ¶¶ 22; Azar Decl. ¶ 15; CC, Ex. B.) The document offered by Defendant states that “For value received, Fatemeh Barani hereby sells, assigns and transfers unto Zahra Roudbarani; [social security number omitted]; the membership interest represented by the within certificate, and does hereby irrevocably constitute and appoint Zahra Roudbarani Attorney to transfer the said member ship interest on the books of the within-named Limited Liability Company with full power of substitution in the premises.” (CC, Ex. B.) The document is signed by both parties and dated December 31, 2015. (Ibid.) Page 3 of the writing appears to transfer ownership to Defendant. Defendant testifies that she executed the membership transfer on December 31, 2015, with Plaintiff. (Response to PSS ¶¶13–16; Zara Decl. ¶ 7.) This testimony is sufficient to sustain a finding that the evidence is what Defendant claims. Thus, the authenticity of the membership transfer is properly addressed by a fact finder. The genuineness of the membership transfer document represents a triable issue of material fact, and if it is deemed authentic by the fact finder then Defendant will have shown the existence of an actual controversy fit for declaratory relief.

Plaintiff offers additional evidence which she argues will support a finding that the transfer never occurred. For example, she claims no vendor or regulator was told of the

change. (PSS at 11) But Defendant does dispute this argument as she claims both the California Department of Health and National Government Services were informed. (Response to PSS at 11) Plaintiff also identifies conduct which might support a jury's determination as to the lack of authenticity of the document, but Defendant both disputes the conduct alleged and offers her own evidence from which a jury might conclude the document is authentic. For example, Defendant states in Par 9 of her Declaration that Plaintiff announced to staff in 2016 that Defendant was now the 100% owner of AHHC. This conduct evidence goes both ways and must be adjudicated by the trier of fact.

In addition, Plaintiff argues that the transfer is void because there was no consideration given for the transfer. It is not evident to the Court that such a transfer requires consideration, but assuming it does, the agreement itself recites the transfer occurred "for fair value received". (PSS at 15). And Defendant further states that she gave non-monetary consideration by agreeing to serve as director of nursing for two other businesses owned by Plaintiff. (DSS at 4.) The Court finds this evidence supports the finding of a triable issue of fact whether consideration was given.

Conclusion:

Plaintiff's motion is denied.